

§ 153-a. Warrant of arrest; when and how executed. (a) A warrant of arrest may be executed on any day of the week, and at any hour of the day or night.

(b) Unless encountering physical resistance, flight or other factors rendering normal procedure impractical, the arresting police officer must inform the subject named therein that a warrant for his arrest for attendance at the proceeding designated therein has been issued. Upon request of such subject, the police officer must show him the warrant if he has it in his possession. The officer need not have the warrant in his possession, and, if he has not, he must show it to the subject upon request as soon after the arrest as possible.

(c) In order to effect the arrest, the police officer may use such physical force as is justifiable pursuant to section 35.30 of the penal law.

(d) In order to effect the arrest, the police officer may enter any premises in which he reasonably believes the subject named therein to be present. Before such entry, he must give, or make reasonable effort to give, notice of his authority and purpose to an occupant thereof.

(e) If the officer, after giving such notice, is not admitted, he may enter such premises, and by a breaking if necessary.